

Court No. - 39

Case :- WRIT - C No. - 1977 of 2019

Petitioner :- Virendra Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Pramod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Suresh Kumar Gupta,J.

Heard Sri Pramod Kumar Srivastava, learned counsel for the petitioner, Sri Mahbood Ahmad, learned counsel for respondent no. 2. and learned Standing Counsel for respondent no. 1, 3 & 4.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 22.11.2018 whereby a sum of Rs. 1,74,005/- is sought to be recovered from the petitioner. The petitioner disputes the electricity bill.

Sri Mehboob Ahmad, learned counsel for the respondent submits that in the case of disputed bill, the petitioner has a remedy by approaching the Executive Engineer under Para 6.5 of the Electricity Supply Code, 2005.

We, therefore, dispose of this writ petition with a direction that if the petitioner appears before the Respondent no. 3-Executive Engineer Purvanchal Electricity Distribution Nigam Ltd. on 31.1.2019 at 11.00 AM along with a certified copy of this order and fresh objections, the Respondent no. 3-Executive Engineer Purvanchal Electricity Distribution Nigam Ltd. shall consider the same and after granting the petitioner an opportunity of hearing decide the said representation, in accordance with law, within a further period of 15 days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned citation dated 22.11.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

Order Date :- 22.1.2019

Vibha Singh